

02:00 PM

23-CIV-04082 SEILER, LLP VS. JASJIT MANGAT

LINE 4

SEILER, LLP
JASJIT MANGAT

KATHRYN S. DIEMER

PLAINTIFF'S COUNSEL: KATHRYN S. DIEMER'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Kathryn Diemer and Diemer & Wei to be relieved as counsel of record for plaintiff Seiler, LLP is granted. Pursuant to CRC 3.1362(e), **the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.**

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Kathryn Diemer or her designee shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

24-CIV-04983 AL MINOR VS. COSTAR IMPORTS, INC., ET AL.

LINE 5

AL MINOR
COSTAR IMPORTS, INC.

ELISE R. VASQUEZ
ERNEST M. MALASPINA

PLAINTIFF: AL MINOR'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

TENTATIVE RULING:

Plaintiff Al Minor's motion for leave to file a first amended complaint (hereinafter "FAC") is DENIED without prejudice.

Defendant's concurrently filed request for judicial notice of two exhibits, plaintiff's verified responses to Form Interrogatory Nos. 208.1 and 50.1, is GRANTED. (Evid. Code § 453.)

Background

This is an employment action arising from plaintiff's role as Vice President of Sales with Defendant Costar Imports, Inc., a national luxury jewelry purveyor, from April 12, 2021 through January 31, 2024. Plaintiff's complaint alleges six causes of action and was filed on August 12, 2024.

Approximately two years later, on May 29, 2026, plaintiff filed the instant motion which seeks to add three new causes of action and name two Doe Defendants. Defendant Costar Imports, Inc. opposes, contending the motion is both procedurally and substantively defective and prejudicial because "the proposed amendment does not clarify existing allegations—it transforms the case by expanding liability, introduce new legal theories, and requiring duplicative and burdensome discovery, delaying resolution, and increasing costs." (Opp. p. 18.)

Legal Standard

Motions for leave to amend the pleadings are left to the sound discretion of the trial court judge. "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." (Code Civ. Proc. § 473, subd. (a)(1) [emphasis added]; see Code Civ. Proc. § 576.) Under code section 576 a "judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (*McMillin v. Eare* (2021) 70 Cal.App.5th 893, 909 [italics in original omitted].)

"California courts have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." (*Mac v. Minassian* (2022) 76 Cal.App.5th 510, 519.) (citations and internal quotations omitted). However, the long deferred presentation of a proposed amendment without a showing of excuse for the delay, even if otherwise good and proposed in proper form, is itself a significant factor supporting denial of the proposed amendment. (Michael Paul Thomas, Cal. Civ. Ctrm. Hbook. & Desktop Ref. (2025 ed.) § 9:63 Amending the Complaint Any Time Before Judgment.)
